

****October 2, 2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in September 2023, an investigation into the operator Cez Vânzare S.A. and found a violation of the provisions of art. 32 para. (1) lit. b) and art. 32 para. (2) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with a fine of 4,969.70 lei (equivalent to 1,000 EURO).

The investigation was initiated following a notification of a personal data security breach.

During the investigation, it was found that the operator sent disconnection notices to clients benefiting from the natural gas supply service via email, as they did not allow access for the operator's distribution staff to read or replace the measuring equipment at the consumption site. During the transmission of the message via electronic mail, some recipient addresses were incorrectly transcribed, resulting in disconnection notices being communicated to clients other than the holders of the consumption site.

As a result of the incident, names and surnames, correspondence addresses, consumption site addresses, client codes, and consumption site codes were disclosed, leading to a breach of data security (through unauthorized disclosure or unauthorized access) of both natural persons and legal entities.

Consequently, the National Authority for the Supervision of Personal Data Processing found that Cez Vânzare S.A. did not implement appropriate technical and organizational measures to ensure a level of security commensurate with the risk of processing, including the ability to ensure the confidentiality, integrity, availability, and resilience of processing systems and services.

Regulation (EU) 2016/679 emphasizes in recitals (39) and (83) the importance of ensuring the security of processing. Thus:

“(39) (...) Personal data should be processed in a manner that ensures their security and confidentiality, including to prevent unauthorized access to them or unauthorized use of personal data and the equipment used for processing.”

“(83) In order to maintain security and prevent processing that violates this regulation, the operator or the person authorized by the operator should assess the inherent risks of processing and implement measures to mitigate those risks, such as encryption. These measures should ensure an appropriate level of security, including confidentiality, taking into account the current state of development and the costs of implementation in relation to the risks and the nature of the personal data whose protection must be ensured. In assessing the risk to the security of personal data, attention should be paid to the risks presented by the processing of data, such as destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data transmitted, stored, or otherwise processed, accidentally or unlawfully, which may lead in particular to physical, material, or moral damage.”

****Legal and Communication Department****

****N.A.S.P.D.C.P****